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Case Number: 26SMCV01179 Hearing Date: July 7, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 7, 2026

CASE NUMBER

26SMCV01179

MOTION

Motion to Strike Portions of First Amended Complaint

MOVING PARTIES

Defendants Brandon Michael Berges and Michael Berges

OPPOSING PARTY

Plaintiff Troy Cleckley

MOTION

This case arises from a motor vehicle collision.

Plaintiff Troy Cleckley ("Plaintiff") filed the instant action on March 3, 2026 against Defendants Brandon Michael Berges ("Brandon") and Michael Berges ("Michael") (together, "Defendants").

The operative First Amended Complaint ("FAC") alleges two causes of action for (1) motor vehicle negligence and (2) general negligence.

Defendants now move to strike the request for exemplary/punitive damages from the FAC. Plaintiff opposes the motion and Defendants reply.[1]

ANALYSIS

1.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3),
emphasis added.)

Further, a plaintiff must

assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To

wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.)

"When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him." (G. D. Searle & Co.

v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v.*

Snepp, the Court of Appeal noted that the plaintiffs' assertions related to their claim for punitive damages were "insufficient to meet the specific pleading requirement." (*Anschutz*

Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643

[plaintiffs alleged "the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the malicious conduct of Defendants. Defendants' conduct justifies an award of exemplary and punitive damages"]; see also *Grieves*

v. Superior Court (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be

circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim”].)

In *Taylor v. Superior Court*, the California Supreme Court held: “We consider whether punitive damages are recoverable in a personal injury action brought against an intoxicated driver. As will appear, we have concluded that the act of operating a motor vehicle while intoxicated may constitute an act of “malice” under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences.” (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 892 [cleaned up].) The California high court further held that “[o]ne who voluntarily commences, and thereafter continues, to consume alcoholic beverages to the point of intoxication, knowing from the outset that he must thereafter operate a motor vehicle demonstrates, in the words of Dean Prosser, “such a conscious and deliberate disregard of the interests of others that his conduct may be called wilful or wanton.” (*Id.* at p. 899.) But the California high court also stated, “Although the circumstances in a particular case may disclose similar wilful or wanton behavior in other forms, ordinarily, routine negligent or even reckless disobedience of traffic laws would not justify an award of punitive damages.” (*Id.* at pp. 899-900.)

Here, Plaintiff alleges:

On May 12, 2024, at approximately 2:15 a.m., Plaintiff TROY CLECKLEY, an individual (“Plaintiff”) lawfully operated his motor vehicle westbound on the US-101, in Calabasas, California when he was the subject of a violent, high-velocity, multi-vehicle freeway collision. While Plaintiff lawfully traveled straight, Defendants BRANDON MICHAEL BERGES, an individual; MICHAEL BERGES, an individual; and DOES 1 TO 20, inclusive, (“Defendants”) made an unsafe turning movement, under the influence, and directly struck Plaintiff’s vehicle. The impact was so severe that Plaintiff’s vehicle was pushed into another innocent vehicle, driven by Rodd Danesh.

[...]

Plaintiff

alleges that the conduct of Defendants were carried out with malice, oppression, and conscious disregard for the rights and safety of others,

thereby entitling Plaintiff to an award of exemplary and punitive damages pursuant to California Civil Code section 3294.

Plaintiff

is informed and believes, and thereon alleges, that prior to the subject incident, Defendants knowingly and voluntarily consumed alcoholic beverages to the point of intoxication. At the time Defendants consumed said alcohol, Defendants knew, or should have known, that they would thereafter operate a motor vehicle.

Plaintiff

is further informed and believes, and thereon alleges, that Defendants thereafter operated a motor vehicle while under the influence of alcohol, despite knowing that their faculties were impaired, and that driving in such condition created a high probability of injury to others.

Defendants'

decision to consume alcohol to the point of intoxication, combined with the conscious decision to thereafter drive a motor vehicle, constitutes despicable conduct carried on with a willful and conscious disregard for the safety of others.

As a

direct and proximate result of Defendants' malicious and despicable conduct, Plaintiff suffered injuries and damages. Accordingly, Plaintiff seeks an award of punitive and exemplary damages in an amount sufficient to punish Defendants and deter similar conduct in the future.

While voluntarily drinking

past the point of intoxication, knowing from the outset that one has to operate a motor vehicle can constitute malice sufficient to state a claim for punitive damages, allegations made "on information and belief" are generally insufficient to satisfy heightened pleading requirements "unless the facts upon which the belief is founded are stated in the pleading." (*Dowling v. Spring Valley Water Co.* (1917) 174 Cal.218, 221.)

Thus, excluding the

allegations made "on information and belief," the Complaint merely alleges that Defendants operated their vehicle in an unsafe manner, causing it to collide with Plaintiff's at a high rate of speed, pushing it into another vehicle. But this does not suffice to satisfy the

heightened pleading requirement to allege malice.

As a threshold matter, it is unclear how two separate defendants both simultaneously drove the same vehicle into Plaintiff. At a minimum, the Complaint lacks specific facts about who the intoxicated driver is alleged to be.

Moreover, Plaintiff does not specify the specific factual information underlying his belief that the driver of the vehicle that collided with his was intoxicated at the time.

In opposition, Plaintiff cites to *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, where the appellate court held that intoxicated driving plus other circumstances showing a probable risk of injury, such as zig-zagging in and out of traffic at 65 miles per hour in a crowded beach recreation area, are sufficient to state a claim for punitive damages.

But *Dawes* does not cure the defects in Plaintiff's allegations as noted above. Further, although Plaintiff alleges Defendants' vehicle struck Plaintiff's at a high rate of speed, there are no allegations that Defendants were zig-zagging in and out of traffic, like in *Dawes*, or that it was a crowded recreation area. As alleged, the accident could simply have involved a relatively ordinary (but unfortunate) lane change on the US-101 freeway.

2.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, *supra*, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden

by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here,

Plaintiff, in the memorandum of points and authorities in support of the opposition to the motion, has indicated that additional facts may be asserted to support a claim for punitive damages against Defendants.

As such, the Court will grant Plaintiff leave to amend.

CONCLUSION AND ORDER

For the reasons stated, the Court grants Defendants' motion to strike exemplary/punitive damages from the FAC with leave to amend.

Further, the Court orders Plaintiff to file and serve a second amended complaint, in conformity with the ruling, on or before July 28, 2026.

Further, on the Court's own motion, the Court continues the Case Management Conference from July 9, 2026 to October 9, 2026 at 8:30 A.M. in Department 207. All parties shall comply with California Rules of Court, rules 3.722, et seq., regarding Initial and Further Case Management Conferences. In particular, all parties shall adhere to the duty to meet and confer (Rule 3.724) and to the requirement to prepare and file Case Management Statements (Rule 3.725).

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 7, 2026 ____/s/____

Michael E.
Whitaker

Judge
of the Superior Court

[1] In support of the opposition, Plaintiff advances the

Declaration of Lior M. Behdadnia. The Court declines to consider the Declaration along with the attachments as procedurally improper. “When considering the motion here, the court relied on a declaration submitted by City and on factual representations made by both counsel in their motion pleadings. It is clear that a motion to strike under section 435 was unavailable under the circumstances.” (City and County of San Francisco v. Strahlendorf (1992) 7 Cal.App.4th 1911, 1913; see also Mireskandari v. Gallagher (2020) 59 Cal.App.5th 346, 358, citation omitted [“Because a demurrer raises only questions of law, trial courts ordinarily do not consider evidence in connection with a demurrer. But a court may consider matters subject to judicial notice when ruling on a demurrer”].)